

CV-24-003269 KEYSTONE RANCH LLC vs CITY OF PATTERSON - Respondents' Motion to Stay Enforcement of Peremptory Writ of Mandate - DENIED, in part, GRANTED, in part.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court issued a Statement of Decision on June 26, 2026, granting relief on the writ causes of action and directing issuance of a peremptory writ requiring Respondents to set aside their April 1, 2025, denial of Petitioner's vesting tentative map application and reconsider the application in compliance with the Housing Accountability Act ("HAA"), Housing Crisis Act, CEQA, and other applicable law. On July 27, 2026, the Court issued an Order Granting Petition for Writ of Mandate and a Peremptory Writ of Administrative Mandate requiring Respondents to complete reconsideration and file a return demonstrating compliance within 90 days. The parties do not dispute that the remaining damages causes of action have not yet been adjudicated and that no final judgment disposing of all claims has been entered. Respondents' principal argument is based upon Code of Civil Procedure section 1094.5, subdivision (f), which provides that "[t]he court shall enter judgment either commanding respondent to set aside the order or decision, or denying the writ." Respondents contend that because no final judgment has yet been entered, enforcement of the writ should be stayed until conclusion of Phase Two. Petitioners respond that the HAA requires expedited review, that Respondents waived or forfeited their objections, and that further delay would prejudice development of a 719-unit housing project. The Court agrees with Respondents that section 1094.5(f) raises a substantial procedural issue. The statute expressly contemplates that administrative mandamus relief is affected through entry of a judgment commanding the respondent agency to set aside its decision. In addition, Respondents' concern that compliance with the writ could impair or potentially moot later appellate review is not frivolous. Cases such as *MHC Operating Ltd. Partnership v. City of San Jose* recognize that subsequent compliance with a writ may, in some circumstances, affect the availability of effective appellate relief. The Court also notes other cases have held that voluntary compliance with the writ of mandate without an attempt to seek a stay of enforcement or appellate review may render an appeal moot. (*Building a Better Redondo, Inc. v. City of Redondo Beach* (2012) 203 Cal.App.4th 852; *Santa Rita Union School Dist. v. City of Salinas* (2023) 94 Cal.App.5th 298, as modified on denial of reh'g (Sept. 7, 2023)). It has also been held that forced compliance does not constitute a waiver of the right to appeal. (*Ryan v. California Interscholastic Federation* (2001) 94 Cal.App.4th 1033). Nevertheless, the Court is not persuaded that these considerations justify an indefinite stay through completion of Phase Two litigation. Section 1094.5 does not expressly require that enforcement of a writ be suspended whenever non-writ claims remain pending. Nor have Respondents cited controlling authority holding that a writ issued following adjudication of a bifurcated mandamus phase must be stayed until all remaining damages claims are resolved. The Court further notes the significant public interests underlying the HAA and the Legislature's policy favoring prompt resolution of disputes affecting housing development projects. Petitioner's evidence demonstrates that the project has already experienced substantial delay and that continued postponement would result in additional prejudice. At the same time, the Court finds that Respondents have demonstrated sufficient concern regarding preservation of appellate review to warrant limited interim relief. Respondents represent that they intend to challenge aspects of the Court's CEQA and SGMA rulings through a petition for extraordinary writ relief and that they remain within the period generally applied to such petitions. A short stay will preserve the status quo and permit the Court of Appeal to determine whether further relief is warranted without materially delaying implementation of the Court's writ. The Court therefore concludes that a narrowly tailored stay, rather than an open-ended stay pending final judgment, best balances the competing interests at issue. Accordingly, the Court orders: Respondents' request to stay enforcement of the Peremptory Writ of Mandate until entry of final judgment is DENIED. Respondents' alternative request for a temporary stay is GRANTED IN PART. Enforcement of the Peremptory Writ of Mandate is stayed through November 27, 2026, solely to permit Respondents to file a petition for extraordinary writ relief and seek a stay from the Court of Appeal. Unless the Court of Appeal orders otherwise, the stay shall automatically dissolve on November 27, 2026. The period during which this stay remains in effect shall be excluded from calculation of the 90-day period for Respondents' compliance with the writ and filing of their return. No further stay shall be granted absent an order by the Court of Appeal or a showing of good cause supported by competent evidence.

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Respondents' principal argument is based upon Code of Civil Procedure section 1094.5, subdivision (f), which provides that "[t]he court shall enter judgment either commanding respondent to set aside the order or decision, or denying the writ." Respondents contend that because no final judgment has yet been entered, enforcement of the writ should be stayed until conclusion of Phase Two. Petitioners respond that the HAA requires expedited review, that Respondents waived or forfeited their objections, and that further delay would prejudice development of a 719-unit housing project.

The Court agrees with Respondents that section 1094.5(f) raises a substantial procedural issue. The statute expressly contemplates that administrative mandamus relief is affected through entry of a judgment commanding the respondent agency to set aside its decision. In addition, Respondents' concern that compliance with the writ could impair or potentially moot later appellate review is not frivolous. Cases such as *MHC Operating Ltd. Partnership v. City of San Jose* recognize that subsequent compliance with a writ may, in some circumstances, affect the availability of effective appellate relief. The Court also notes other cases have held that voluntary compliance with the writ of mandate without an attempt to seek a stay of enforcement or appellate review may render an appeal moot. (*Building a Better Redondo, Inc. v. City of Redondo Beach* (2012) 203 Cal.App.4th 852; *Santa Rita Union School Dist. v. City of Salinas* (2023) 94 Cal.App.5th 298, as modified on denial of reh'g (Sept. 7, 2023). It has also been held that forced compliance does not constitute a waiver of the right to appeal. (*Ryan v. California Interscholastic Federation* (2001) 94 Cal.App.4th 1033).

Nevertheless, the Court is not persuaded that these considerations justify an indefinite stay through completion of Phase Two litigation. Section 1094.5 does not expressly require that enforcement of a writ be suspended whenever non-writ claims remain pending. Nor have Respondents cited controlling authority holding that a writ issued following adjudication of a bifurcated mandamus phase must be stayed until all remaining damages claims are resolved. The Court further notes the significant public interests underlying the HAA and the Legislature's policy favoring prompt resolution of disputes affecting housing development projects. Petitioner's evidence demonstrates that the project has already experienced substantial delay and that continued postponement would result in additional prejudice.

At the same time, the Court finds that Respondents have demonstrated sufficient concern regarding preservation of appellate review to warrant limited interim relief. Respondents represent that they intend to challenge aspects of the Court's CEQA and SGMA rulings through a petition for extraordinary writ relief and that they remain within the period generally applied to such petitions. A short stay will preserve the status quo and permit the Court of Appeal to determine whether further relief is warranted without materially delaying implementation of the Court's writ.

The Court therefore concludes that a narrowly tailored stay, rather than an open-ended stay pending final judgment, best balances the competing interests at issue.

Accordingly, the Court orders:

Respondents' request to stay enforcement of the Peremptory Writ of Mandate until entry of final judgment is DENIED.

Respondents' alternative request for a temporary stay is GRANTED IN PART.

Enforcement of the Peremptory Writ of Mandate is stayed through November 27, 2026, solely to permit Respondents to file a petition for extraordinary writ relief and seek a stay from the Court of Appeal.

Unless the Court of Appeal orders otherwise, the stay shall automatically dissolve on November 27, 2026.

The period during which this stay remains in effect shall be excluded from calculation of the 90-day period for Respondents' compliance with the writ and filing of their return.

No further stay shall be granted absent an order by the Court of Appeal or a showing of good cause supported by competent evidence.